U.S. Department of Transportation
Federal Aviation Administration

Advisory Circular

Subject: Repair Station Guidance for Compliance with the Safety Agreement between the United States and the European Union

Date: 11/28/12
Initiated by: AFS-300

AC No: 145-11A
Change:

1. PURPOSE. This advisory circular (AC) provides information and guidance regarding a repair station located in the United States obtaining, renewing, or amending a European Union Aviation Safety Agency (EASA) Part-145 approval and an Approved Maintenance Organization (AMO) located within the European Union (EU) obtaining, renewing, or amending a Federal Aviation Administration (FAA) Repair Station Certificate under the provisions of the U.S./EU aviation safety agreement (the Agreement). The contents of this document do not have the force and effect of law and are not meant to bind the public in any way, and the document is intended only to provide information to the public regarding existing requirements under the law or agency policies.

2. AUDIENCE. This AC is applicable for AMOs located in a country listed in the Agreement, Annex 2, Appendix 2 who want FAA repair station privileges to maintain U.S.-registered aircraft and associated parts. This AC is also applicable for repair stations located within the United States who want EASA Part-145 privileges to maintain European-registered aircraft and associated parts.

3. WHERE YOU CAN FIND THIS AC. You can find this AC on the FAA's website at https://www.faa.gov/regulations_policies/advisory_circulars and the Dynamic Regulatory System (DRS) at https://drs.faa.gov.

4. CANCELLATION. This AC cancels AC 145-11, Repair Station Guidance for Compliance with the Safety Agreement between the United States and European Union, dated March 9, 2012.

5. RELATED REGULATIONS.

a. FAA Regulations. Title 14 of the Code of Federal Regulations (14 CFR) parts 43, 145, and 187.

b. EASA Regulations. Regulation (EU) 2018/1139 of the European Parliament and of the Council of 4 July 2018, Commission Regulation (EU) No 1321/2014, Annex II (hereafter referred to as EASA Part-145), and associated EASA Acceptable Means of Compliance (AMC) and Guidance Material.

6. ACRONYMS AND DEFINITIONS. Appendix 1 of this AC contains relevant acronyms and definitions.

7. RELATED READING MATERIAL (current editions).

a. ACs. You can obtain current editions of the following documents from the FAA website at https://www.faa.gov/regulations_policies/advisory_circulars/.

- AC 00-44, Status of Federal Aviation Regulations.
- AC 00-58, Voluntary Disclosure Reporting Program.
- AC 20-62, Eligibility, Quality, and Identification of Aeronautical Replacement Parts.
- AC 21-29, Detecting and Reporting Suspected Unapproved Parts.
- AC 145-10, Repair Station Training Program.
- AC 187-1, Flight Standards Service Schedule of Charges Outside the United States.

b. FAA Orders. You can obtain current editions of the following documents from the MyFAA employee website at https://employees.faa.gov/tools_resources/orders_notices/. Inspectors and operators can obtain these documents through DRS at https://drs.faa.gov. The public can access these documents at https://www.faa.gov/regulations_policies/orders_notices/.

- FAA Order 8130.2, Airworthiness Certification of Aircraft.
- FAA Order 8130.21, Procedures for Completion and Use of the Authorized Release Certificate, FAA Form 8130-3, Airworthiness Approval Tag.
- FAA Order 8900.1, Flight Standards Information Management System.

c. EASA Documents. You can obtain all related EASA documents on the EASA website at https://www.easa.europa.eu/document-library.

d. Joint Documents. You can obtain the following documents from the FAA website at https://www.faa.gov/aircraft/repair/.

- Agreement Between the United States of America and the European Community on Cooperation in the Regulation of Civil Aviation Safety (the Agreement).
- Maintenance Annex Guidance Between the Federal Aviation Administration of the United States of America and the European Union Aviation Safety Agency of the European Union (the MAG).

8. BACKGROUND.

a. U.S./EU Aviation Safety Agreement.

(1) The Agreement was originally signed on June 30, 2008. The Agreement's official title is "Agreement Between the United States of America and the European Community on Cooperation in the Regulation of Civil Aviation Safety."

(2) The Agreement allows the FAA and EASA to rely on each other's surveillance systems, minimize the duplication of efforts, increase efficiency, and conserve resources to the greatest extent possible. As stated in Article 5 of the Agreement, areas of reciprocal acceptance and technical differences are specified in the Annexes; Annex 1 pertains to airworthiness and environmental certification, while Annex 2 pertains to maintenance.

(3) Annex 2 of the Agreement contains a mandate in paragraph 3.2 for the Joint Maintenance Coordination Board (JMCB) to develop, approve, and revise detailed guidance for processes covered by the Annex.

(4) The detailed guidance described in Annex 2 is contained in "Maintenance Annex Guidance Between the Federal Aviation Administration of the United States of America and the European Union Aviation Safety Agency of the European Union," which is commonly referred to as the MAG.

b. Contents of the MAG. The MAG contains five sections (A, B, C, D, and E) that address the processes and procedures agreed to between EASA and the FAA. The sections are as follows:

(1) Section A—Authority Interaction. This section applies to the FAA, EASA, and aviation authorities (AA). It provides the coordination and communication process for the regulatory agencies. It also includes FAA sampling and independent inspections as well as blank forms for the coordination process.

(2) Section B—Certification for U.S.-Based Repair Stations. This section identifies the requirements and processes for repair stations located in the United States to follow for obtaining an EASA approval.

(3) Section C—Certification Process for EU-Based Approved Maintenance Organizations. This section identifies the requirements and processes for an EU-based AMO to follow for obtaining FAA certification and renewal. Additionally, it contains the responsibilities of both the FAA aviation safety inspector (ASI) and the AA.

(4) Section D—Entry into Force and Termination.

(5) Section E—Authority. This section identifies the signatory approvals by the FAA and EASA.

9. THE AGREEMENT, ANNEX 2, MAINTENANCE.

a. General Information. Persons in the United States and EU maintaining both U.S. and EU aeronautical products should be familiar with the Agreement and the MAG.

b. Special Conditions. Particular attention should be focused on the differences between 14 CFR part 145 and EASA Part-145 which are identified as "special conditions" in Annex 2, Appendix 1 of the Agreement. An FAA-certificated repair station (CRS) located in the United States, when in compliance with EASA-published maintenance special conditions, may apply for EASA approval. Likewise, an EU-based AMO, when in compliance with published FAA maintenance special conditions, may apply for FAA approval.

c. Unimpeded Access. For the purposes of surveillance and inspections, the FAA and EASA (and AAs) will help each other gain unimpeded access to repair stations/AMOs subject to their respective jurisdictions. It is incumbent upon you to provide unimpeded access to EASA and the FAA to all work areas having civil aviation application. If you provide maintenance for

both civil and military products, you should ensure, where possible, that there is clear delineation between work areas with civil and military applications within the repair station/AMO.

d. Training Program Requirements. For U.S. repair stations that have an EASA Part-145 approval, the human factors (HF) training is an EASA special condition requirement.

(1) Training should center on the scope of work you perform. You should also ensure the training program is controlled and developed per the FAA Repair Station Manual (RSM)/EASA supplement.

(2) For details regarding training development, affected repair stations, and additional information, refer to AC 145-10.

10. GUIDANCE FOR A REPAIR STATION LOCATED IN THE UNITED STATES TO OBTAIN EASA APPROVAL. Repair stations in the United States should refer to Section B of the MAG.

11. GUIDANCE FOR AN EU-BASED AMO TO OBTAIN FAA APPROVAL. AMOs should refer to Section C of the MAG.

12. REQUEST FOR INFORMATION. The Aircraft Maintenance Division, General Aviation Group, Repair Station Section developed this AC. For information concerning this AC, contact the General Aviation Group at 202-267-1675.

13. AC FEEDBACK FORM. For your convenience, the AC Feedback Form is the last page of this AC. Note any deficiencies found, clarifications needed, or suggested improvements regarding the contents of this AC on the Feedback Form.

Michael Zenkovich
Deputy Director, Flight Standards Service

APPENDIX 1. ACRONYMS AND DEFINITIONS

1. ACRONYMS. The following are acronyms as applied to this AC, the Agreement, and applicable guidance material.

AA	Aviation Authority
AMO	Approved Maintenance Organization
ASI	Aviation Safety Inspector
BOB	Bilateral Oversight Board
CFR	Code of Federal Regulations
EASA	European Union Aviation Safety Agency
EU	European Union
FAA	Federal Aviation Administration
JMCB	Joint Maintenance Coordination Board
MAG	Maintenance Annex Guidance
MOE	Maintenance Organization Exposition
OpSpec	Operations Specification
QCM	Quality Control Manual
RSM	Repair Station Manual
SIS	Sampling Inspection System
TA	Technical Agent
TIP	Technical Implementation Procedures for Airworthiness
U.S.	United States

2. DEFINITIONS. Specific terms are defined in Article 1 of the Agreement and Section A, Appendix 10 of the MAG.

Advisory Circular Feedback Form

If you find an error in this AC, have recommendations for improving it, or have suggestions for new items/subjects to be added, you may let us know by contacting the OPR NAME or the Flight Standards Directives Management Officer at 9-AWA-AFB-120-Directives@faa.gov.

Subject: AC 145-11A, Repair Station Guidance for Compliance with the Safety Agreement between the United States and the European Union

Date: _____

Please check all appropriate line items:

☐ An error (procedural or typographical) has been noted in paragraph _____ on page _____.

☐ Recommend paragraph _____ on page _____ be changed as follows:

_____

_____

☐ In a future change to this AC, please cover the following subject:
(Briefly describe what you want added.)

_____

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☐ Other comments:

_____

_____

☐ I would like to discuss the above. Please contact me.

Submitted by: _____ Date: _____